

20CV04009 Ana Miranda Mendoza et al vs Rich & Famous Inc et al

County: santa-barbara

Division: Civil Law & Motion

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Case Number

20CV04009

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/12/2026 - 10:00

Nature of Proceedings

Motion: Approval

Tentative Ruling

Ana Miranda Mendoza, et al. v. Rich & Famous, Inc. dba Big Green Cleaning Company, et al.

Case No. 20CV04009

Hearing Date: June 12, 2026

HEARING: Motion of Plaintiffs Ana Miranda Mendoza and Maria Garcia for Order Granting Preliminary Approval of Class Action Settlement

ATTORNEYS: For Plaintiffs Ana Miranda Mendoza and Maria Garcia: Jonathan Melmed, Laura M. Supanich

For Defendants Rich & Famous, Inc. dba Big Green Cleaning Company and Allen Paul Williams: John K. Rubiner, David C. Chang

TENTATIVE RULING: For all reasons stated herein, the motion of plaintiffs Ana Miranda Mendoza and Maria Garcia for preliminary approval of class action settlement is granted. The court approves certification of the provisional settlement class as requested by plaintiffs and approves the notice attached as exhibits 1 and 2 to the settlement agreement. The provisional settlement class consists of "all individuals who are or were employed by Defendants as non-exempt employees in California during the Class Period." The provisional settlement for the PAGA claims consists of "all individuals who are or were employed by Defendants as non-exempt employees in California during the PAGA Period." Plaintiffs Ana Miranda Mendoza and Maria Garcia are appointed as representatives for the settlement class, plaintiffs' counsel of record is appointed as counsel for the settlement class, and ILYM Group, Inc., is appointed as settlement administrator. The final approval hearing shall take place on December 11, 2026, at 10:00 a.m. in this department. The parties shall promptly carry out the notice procedures set forth in the settlement agreement.

Background:

On December 3, 2020, Ana Miranda Mendoza (Mendoza) initiated this action by filing a class action complaint against Rich & Famous, Inc., dba Big Green Cleaning Company, Inc. (Big Green). The complaint sets forth nine causes of action based on alleged violations of the Labor Code, including minimum wage violations, overtime violations, rest and meal period violations, failure to reimburse business expenses, failure to pay timely wages, and failure to provide accurate wage statements.

On March 17, 2021, Mendoza filed a first amended complaint, adding a cause of action for penalties pursuant to the California Private Attorneys General Act of 2004 (PAGA).

On October 26, 2021, Allen Paul Williams (Williams) was added as a defendant in place of Doe 1.

On September 28, 2022, pursuant to the parties' stipulation, Mendoza filed the operative second amended complaint (SAC) adding Maria Garcia (Garcia) as an additional named plaintiff and class representative (collectively, Mendoza and Garcia are referred to herein as Plaintiffs). The primary putative class is defined in the SAC as "[a]ll individuals who are or were employed by Defendants in California as a nonexempt employee December 3, 2016 through the date of trial." (SAC, ¶ 46.) Williams was not referenced as a defendant in the SAC.

On October 28, 2022, Big Green filed an answer to the SAC, generally denying the allegations therein and setting forth 42 affirmative defenses.

Following both informal and formal discovery, as well as two separate private mediation sessions occurring on October 12, 2021, and October 2, 2024, the parties executed a long-form settlement agreement on December 16, 2025 (Settlement Agreement). (Melmed Decl., ¶¶ 7-10, Ex. A.)

On January 9, 2026, the court denied without prejudice Plaintiffs' initial motion for preliminary approval of the Settlement Agreement.

On March 25, 2026, Plaintiffs filed a revised motion for preliminary approval of the Settlement Agreement.

On April 17, 2026, the court continued the hearing on this matter and requested additional information pertaining to proposed incentive awards.

On May 11, 2026, this matter was continued again by stipulation to this hearing date.

Plaintiffs' motion seeks preliminary certification of a settlement class, preliminary appointment of Plaintiffs as class representatives, preliminary appointment of Plaintiffs' counsel as counsel for the settlement class, preliminary approval of notice to the settlement class, preliminary appointment of the settlement administrator, preliminary approval of the terms of the Settlement Agreement, and preliminary approval of attorney fees, litigation costs, incentive awards, PAGA penalties, and settlement administration costs. There is no opposition to the motion.

Analysis:

(1) Procedures for Approval of Class Action Settlement

"Rule 3.769 of the California Rules of Court (CRC) sets forth the procedures for settlement of class actions in California. [Citation.] A two-step process is required. First, the court preliminarily approves the settlement and the class members are notified as directed by the court. [Citation.] 'The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.' [Citation.] Second, the court conducts a final approval hearing to inquire into the fairness of the proposed settlement. [Citation.] If the court approves the settlement, a judgment is entered with provision for continued jurisdiction for the enforcement of the judgment. [Citation.]" (Cellphone Termination Fee Cases (2009) 180 Cal.App.4th 1110, 1118; see also Cal. Rules of Court, rule 3.769(c)-(f).)

The court may make an order approving or denying certification of a provisional settlement class after the preliminary settlement hearing." (Cal. Rules of Court, rule 3.769(d).) "If the court grants preliminary approval, its order must include the time, date, and place of the final approval hearing; the notice to be given to the class; and any other matters deemed necessary for the proper conduct of a settlement hearing." (Id., rule 3.769(e).)

(2) Standards for Preliminary Evaluation of Fairness of Class Action Settlement

"Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769.) "The trial court has broad discretion to determine whether the settlement is fair. [Citation.] It should consider relevant factors, such as the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. [Citation.] The list of factors is not exhaustive and should be tailored to each case. Due regard should be given to what is otherwise a private consensual agreement between the parties. The inquiry 'must be limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.' " (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1801 (Dunk).)

"[A] presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (Dunk, supra, 48 Cal.App.4th at p. 1802.) The involvement of a mediator strongly weighs in favor of finding that the Settlement Agreement represents a non-collusive and arm's-length agreement. (See Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 128-129.) "The court undoubtedly should give considerable weight to the competency and integrity of counsel and the involvement of a neutral mediator in assuring itself that a settlement agreement represents an arm's length transaction entered without self-dealing or other potential misconduct." (Id. at p. 129.)

(3) Preliminary Evaluation of the Settlement Agreement

The Settlement Agreement is between Plaintiffs, on the one hand, and Big Green and Williams, on the other hand (collectively, Defendants). (Melmed Decl., Ex. A at p. 3, ll. 1-7.) The gross settlement is \$3,670,933.04. (Id. at ¶ 5.1.) There is no reversion. (Ibid.) Defendants will deposit the gross settlement in a lump sum payment plus the employer-side payroll taxes to the settlement administrator within 14 days of the effective date. (Id. at ¶ 6.2.)

The net settlement is the gross settlement less class counsel's fees and costs, settlement administration costs, incentive awards, and the LWDA's share, i.e., 75 percent, of the PAGA penalties. (Melmed Decl., Ex. A at ¶¶ 1.26, 3, 8.1.) Out of the gross settlement, class counsel will receive attorney fees not to exceed one-third of the gross settlement, i.e., up to \$1,223,644.35, and costs and expenses up to an additional \$50,000. (Id. at ¶ 5.7.) There are settlement administration costs up to \$100,000. (Id. at ¶ 6.1.) The named plaintiffs will receive incentive awards of up to \$10,000 each, and 47 other settlement class members who provided material assistance to class counsel will receive incentive awards of up to \$1,000 each. (Id. at ¶ 5.2.) The LWDA will receive seventy-five percent of the total PAGA penalties of \$150,000.00, i.e., \$112,500.00. (Id. at ¶ 5.4.)

After all court-approved deductions from the non-reversionary gross settlement, the estimated net settlement is \$2,199,838.69, to be distributed on pro rata based on the proportional number of weeks worked by each participating class member. (Motion, p. 1, ll. 11-15.) The settlement class consists of all individuals who are or were employed by Defendants as nonexempt employees in California from December 3, 2016, through February 5, 2025. (Melmed Decl., Ex. A at ¶¶ 1.11, 1.40.) Big Green represents that the settlement class consists of approximately 2,240 members that worked a total of approximately 218,184 workweeks during the class period. (Ibid.)

Applying the factors under Dunk, it appears class counsel conducted an adequate factual and legal investigation. (Melmed Decl., ¶¶ 3-45.) The parties appear to have engaged in arm's length settlement negotiations before an experienced mediator, including two full day mediations. (Id. at ¶ 3.) The gross settlement amount appears reasonable in light of the potential liability and likelihood of success on the merits. (Id. at ¶¶ 14-40.) Plaintiff's counsel appears qualified with experience in this area of law. (Id., ¶¶ 41-45.) The proposed class administrator, ILYM Group, Inc., also appears qualified and the settlement administration costs appear within a reasonable range. (Id., ¶ 53, Exs. D and E.) The requested attorney fees are within the range of approval, typically between 25 percent and 33.33 percent of the gross settlement. (See Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 557, fn. 13.) Incentive awards to a class action plaintiff are permitted based on a number of factors. (See Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 804 (Clark); Golba v. Dick's Sporting Goods, Inc. (2015) 238 Cal.App.4th 1251, 1272 (Golba).) The court will evaluate these proposed fees and other aspects of the proposed settlement in more detail at the final approval hearing.

Having evaluated the motion, the memoranda, and the declarations, the court finds the Settlement Agreement is within the range for possible approval. The Settlement Agreement does not appear to be the product of fraud or overreaching by, or collusion between, the negotiating parties. The Settlement Agreement appears reasonable given the legal and factual hurdles for each set of claims, the benefits of early settlement, and the reality that a disputed certification motion might not be fully successful. Plaintiffs have met their burden to establish that, for purposes of preliminary approval, the proposed settlement is fair, reasonable, adequate and in the best interests of the putative class. (See Dunk, supra, 48 Cal.App.4th at p. 1801.)

(4) Incentive Awards to the 47 Putative Class Members Who Are not Named Plaintiffs or Class Representatives

The Settlement Agreement provides for each of the named class representative Plaintiffs to receive an incentive award of up to \$10,000. (Melmed Decl., Ex. A at ¶ 5.2.) The named Plaintiffs submitted declarations in support of the incentive awards to the named Plaintiffs. (Mendoza Decl.; Garcia Decl.) Additionally, the Settlement Agreement provides for incentive awards to 47 putative class members who are not named plaintiffs or class representatives of up to \$1,000 each. (Ibid.) The maximum amount of incentive awards totals \$67,000. (Ibid.) According to the moving papers, the 47 class members who are not class representatives assisted in the investigation, provided factual background, participated in lengthy interviews, and provided critical documents. (Melmed Decl., ¶ 51.)

Courts have determined an "incentive award is appropriate 'if it is necessary to induce an individual to participate in the suit,' and have noted 'relevant factors' to consider in deciding whether such an award is warranted. [Citation.] Those factors

include 'the actions the plaintiff has taken to protect the interests of the class, the degree to which the class has benefitted from those actions, and the amount of time and effort the plaintiff expended in pursuing the litigation.' [Citation.] Federal district courts have identified other factors as well, including 'the risk to the class representative in commencing suit, both financial and otherwise,' 'the notoriety and personal difficulties encountered by the class representative,' the duration of the litigation, and 'the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation.'" (Clark, supra, 175 Cal.App.4th at p. 804.)

"Incentive awards to class representatives are intended to compensate class representatives for the work and risk undertaken on behalf of the class, to reimburse expenses incurred in the class litigation, and sometimes to recognize the willingness of class representatives to act as a private attorney general. [Citation.] An incentive award may be appropriate to induce someone to serve as a class representative. In determining whether to make an incentive award, the court may consider (1) the risk, both financial and otherwise, the class representative faced in bringing the suit; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation; and (5) the personal benefit received by the class representative as a result of the litigation. [Citation.]" (Golba, supra, 238 Cal.App.4th at p. 1272.)

Plaintiffs have not cited the court to California appellate law pertaining to incentive awards to participating members of a putative settlement class who are not named class representatives. The court has not independently located any such case. "Where California courts have not addressed an issue, they look to federal cases as persuasive authority on class action questions." (Collins v. Safeway Stores, Inc. (1986) 187 Cal.App.3d 62, 73, fn. 6.)

An appellate decision from the United States Court of Appeals for the Ninth Circuit evaluated whether incentive awards to participating, non-representative class members could be appropriate. (Staton v. Boeing Co. (9th Cir. 2003) 327 F.3d 938, 975 (Staton).) "[C]lass members can certainly be repaid from any cost allotment for their substantiated litigation expenses, and identifiable services rendered to the class directly under the supervision of class counsel can be reimbursed as well from the fees awarded to the attorneys." (Id. at p. 977.) However, the court raised concerns about providing incentive awards to participating, non-representative class members because "singling out a large group of non-named plaintiff class members for higher payments without regard to the strength of their claims eliminates a critical check on the fairness of the settlement for the class as a whole." (Ibid.) The court noted, "if those individuals rendered compensable services to the lawyers, then the lawyers should pay for those services from the amount of the fund properly awarded for costs or fees, as appropriate." (Id. at p. 978.) But the court appeared to accept without affirmatively ruling that an award to non-representative class members might be appropriate if supported with evidence and otherwise appropriate as part of the overall settlement. (Ibid. ["If, alternatively, an individual's class membership is debatable, then the award to him or her can be considered an element of the compromise."].) The matter was ultimately remanded for further proceedings.

Federal district courts have applied Staton in various contexts. In Wren v. RGIS Inventory Specialists (N.D.Cal., Apr. 1, 2011) 2011 WL 1230826 (Wren), at pages 31 to 38, the court analyzed whether a participating opt-in, non-representative class member was eligible to receive an incentive award in the amount of \$2,500. Applying Staton, the court evaluated the participating class member's time and effort expended, the benefits provided to the class by way of his participation, the risks associated with the participation, and the amount and number of incentive awards in relation to the overall settlement amount. (Ibid.) After considering these factors, the court approved the incentive award. (Ibid.)

Other federal courts have entertained applications for or approved similar incentive awards without substantial analysis. For example, in Romero v. Producers Dairy Foods, Inc. (E.D.Cal., Nov. 14, 2007) 2007 WL 3492841, at page 4, the court approved incentive awards to non-representative settlement class members who were deposed in the action. In Satchell v. Federal Express Corp. (N.D.Cal., Apr. 13, 2007) 2007 WL 1114010, at page 9, the court stated it would entertain a petition for an award to participating class members who provided declarations in the action.

On other hand, some federal courts applying Staton have found incentive awards to non-representative, participating class members inappropriate. In Roe v. SFBSC Management, LLC (N.D.Cal., Nov. 29, 2022) 2022 WL 17330847, at page 21, applying Staton, "[t]he court denie[d] the requested \$3,000 payments [to participating class members] ... because they are not Class Representatives." In Morales v. Stevco, Inc. (E.D.Cal., May 16, 2012) 2012 WL 1790371, at page 20, applying Staton, the court ruled that "the Ninth Circuit has determined only 'named plaintiffs, as opposed to designated class members who are not named plaintiffs, are eligible for reasonable incentive payments.'" [Citation.] Consequently, [the

non-representative, participating class members] are not eligible for incentive payments for their participation in this action." The court noted, however, under Staton, "identifiable services rendered to the class directly under the supervision of class counsel can be reimbursed ... from the fees awarded to the attorneys." (Id. at p. *20, fn. 16.)

Having reviewed the case law addressing these issues, the court will follow the approach in Wren, supra, 2011 WL 1230826, at pages 31-38. The court will require plaintiffs to support the proposed incentive awards to participating, non-representative class members with sufficient evidence that permits the court to apply the factors set forth in Clark and Golba as to each award.

The court has reviewed the supplemental declaration from plaintiffs' counsel. (See Supplemental Declaration of Christian Valenzuela Cabral, ¶¶ 4-8, Ex. B.) This supplemental information will permit the court to evaluate the "quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred ... in order for the trial court to conclude that an enhancement was "necessary to induce [the non-representative members] to participate in the suit...." (Clark, supra, 175 Cal.App.4th at p. 807.) The court preliminarily approves these incentive awards as falling within the range of reasonableness.

(5) Requirements of Class Certification for Purposes of Settlement

Code of Civil Procedure section 382 authorizes class actions "when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court, one or more may sue or defend for the benefit of all." (Code Civ. Proc., § 382.) "Class certification requires proof (1) of a sufficiently numerous, ascertainable class, (2) of a well-defined community of interest, and (3) that certification will provide substantial benefits to litigants and the courts, i.e., that proceeding as a class is superior to other methods. [Citation.]" (Fireside Bank v. Superior Court (2007) 40 Cal.4th 1069, 1089.)

To determine whether a class is ascertainable, the court examines "(1) the class definition, (2) the size of the class, and (3) the means available for identifying class members. [Citation.]" (Reyes v. San Diego County Bd. of Supervisors (1987) 196 Cal.App.3d 1263, 1271.) "A related inquiry is manageability of the proposed class[.]" (Global Minerals & Metals Corp. v. Superior Court (2003) 113 Cal.App.4th 836, 849.) "The community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class." (Richmond v. Dart Industries, Inc. (1981) 29 Cal.3d 462, 470.)

For purposes of the proposed settlement class, Plaintiffs' claims appear typical of those of the putative class and they appear to be adequate representatives. (Melmed Decl., ¶¶ 11-35; Mendoza Decl., ¶¶ 4-11; Garcia Decl., ¶¶ 4-11.) Plaintiffs' claims appear to arise from the same course of conduct that give rise to the claims of other putative class members. (SAC, ¶¶ 19-45.) Plaintiffs' counsel appears adequate based on their experience and qualifications. (Melmed Decl., ¶¶ 41-45.) For purposes of settlement, there appears to be a well-defined community of interests community and a class action appears to be the superior method to resolve the issues presented in this action. The settlement class members can be identified from Big Green's records. The parties have identified approximately 2,240 putative class members ostensibly subjected to the same policies and practices, based on the same legal standards. (Id., ¶ 6.) The circumstances of this action are typical of wage and hour cases that are settled via the class action process. Plaintiffs have met their burden to establish the requirements for certification of a settlement class as defined in the Settlement Agreement.

(6) Preliminary Evaluation of the PAGA Settlement

PAGA is set forth in Labor Code sections 2698 through 2699.8. A PAGA action is a type of qui tam action, in which a private party is authorized to bring an action to recover a penalty on behalf of the government and receive part of the recovery as compensation. (Huff v. Securitas Sec. Servs. USA, Inc. (2018) 23 Cal.App.5th 745, 753.) In doing so, the employee acts as proxy for the state labor law enforcement agency; the proceeding is designed to protect the public, not to benefit private parties. (Amalgamated Transit Union, Local 1756, AFL-CIO v. Superior Court (2009) 46 Cal.4th 993, 1003.) The dispute is between the employer and the state. (Kim v. Reins International California, Inc. (2020) 9 Cal.5th 73, 81 (Kim).) "Of the civil

penalties recovered, [65] percent goes to the Labor and Workforce Development Agency [LWDA], leaving the remaining [35] percent for the 'aggrieved employees.' " (Id.; see Lab. Code, § 2699, subd. m.)

The purpose of PAGA is not to recover damages, restitution, or redress the employees' injuries, but to recover civil penalties to remediate present violations and deter future ones. (Kim, supra, 9 Cal.5th at p. 86.) "The superior court shall review and approve any settlement of any civil action filed pursuant to this part. The proposed settlement shall be submitted to the [LWDA] at the same time that it is submitted to the court." (Lab. Code, § 2699, subd. (s)(2).)

Here, the PAGA settlement class consists of all individuals who are or were employed by Defendants as nonexempt employees in California from December 3, 2019, through February 5, 2025. (Melmed Decl., Ex. A at ¶¶ 1.30, 1.31.) The PAGA penalties are \$150,000. (Id. at ¶ 1.29.) In addition to their share of the net settlement, each PAGA member will also receive a portion of the employee's share of the PAGA penalties, i.e., a pro rata share of \$37,500, based on the employee's workweeks during the PAGA period.

The penalties at issue in this action carry an estimated potential of \$100 for each aggrieved employee per pay period. (See Lab. Code, § 2699, subd. (f)(2)(A); Melmed Decl., ¶¶ 23, 30, 34.) However, the court has discretion to "award a lesser amount than the maximum civil penalty amount specified by this part ... if, based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust, arbitrary and oppressive, or confiscatory." (Lab. Code, § 2699, subd. (e)(2).) Under these circumstances, the court finds that the purposes of PAGA to remediate prior violations and deter future ones is largely achieved by the proposed class settlement. (Melmed Decl., ¶¶ 23, 30, 34.) The PAGA penalties as part of the overall settlement structure appears reasonable, fair, and adequate. The PAGA settlement will not be finally approved until the Settlement Agreement is approved at the final approval hearing.

(7) Release

"Upon the Effective Date, the Releasing Parties shall be deemed to each release the Released Parties, and each of them, of and from any and all Released Claims arising during the Class Period...." (Melmed Decl., Ex. A at ¶ 11.1.) The released claims are defined as "those claims arising out of or related to the allegations set forth in the operative complaint and/or PAGA notice to the California Labor and Workforce Development Agency that arose during the Class Period and/or PAGA Period" (Id. at ¶ 1.35.) The released parties are defined as "Defendants and all of Defendants' subsidiaries, affiliates, shareholders, principals, managers, officers, directors, employees, members, agents, predecessors, successors, and assigns." (Id. at ¶ 1.36.) The release appears "appropriately tethered to the complaint's factual allegations...." (Amaro v. Anaheim Arena Management, LLC (2021) 69 Cal.App.5th 521, 538.) Further, the release appears sufficiently tethered to the facts and transactions giving rise to the PAGA penalties at issue in the PAGA period. (See Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 83, disapproved on another ground in Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664, 709-710.)

(8) Content of Proposed Notice

"The content of the class notice is subject to court approval. If class members are to be given the right to request exclusion from the class, the notice must include the following: [¶] (1) A brief explanation of the case, including the basic contentions or denials of the parties; [¶] (2) A statement that the court will exclude the member from the class if the member so requests by a specified date; [¶] (3) A procedure for the member to follow in requesting exclusion from the class; [¶] (4) A statement that the judgment, whether favorable or not, will bind all members who do not request exclusion; and [¶] (5) A statement that any member who does not request exclusion may, if the member so desires, enter an appearance through counsel." (Cal. Rules of Court, rule 3.766, subd. (d).)

"In determining the manner of the notice, the court must consider: [¶] (1) The interests of the class; [¶] (2) The type of relief requested; [¶] (3) The stake of the individual class members; [¶] (4) The cost of notifying class members; [¶] (5) The resources of the parties; [¶] (6) The possible prejudice to class members who do not receive notice; and [¶] (7) The res judicata effect on class members." (Cal. Rules of Court, rule 3.766, subd. (e).)

ILYM Group, Inc. (ILYM), will act as settlement administrator. (Melmed Decl., ¶ 53, Exs. D, E.) The Settlement Agreement contains detailed notice procedures. (Melmed Decl., Ex. at ¶ 7.1-7.5.) Within 14 days after preliminary approval, Big Green will provide the class data to ILYM. (Id. at ¶ 7.2.) Within 28 days after preliminary approval, ILYM will mail the class notice. (Ibid.) If a notice is returned as undeliverable, ILYM will perform a skip trace search and seek an address correction for such class members, and a second notice packet will be sent

to any new or different address obtained by the skip trace process. (Id. at ¶ 7.3.)

The proposed notice is attached as exhibit 1 (class notice) and exhibit 2 (workweek calculation) to the Settlement Agreement. (Melmed Decl., Ex. A, at Exs. 1-2.)

The class notice contains a brief explanation of the case (Melmed Decl., Ex. A at Ex. 1, pp. 2-3), a statement that the court will exclude a member if the request is submitted by a specified date (id. at pp. 9-10), a procedure for the member to follow in requesting exclusion from the class (ibid.), a statement that the settlement if approved will bind all members who do not request exclusion and that certain claims will be released (id. at pp. 7-8), and a statement that a party who wishes to participate may object and appear through separate counsel (id. at p. 10). The proposed notice packet contains a separate document explaining the workweek calculation and the resulting share of the settlement for a class member. (Melmed Decl., Ex. A, at Ex. 2.)

The court finds the notice easy to understand, sufficient to apprise the members of their rights and obligations in connection with the proposed settlement, and sufficient to notify those members of their right and opportunity to opt out of or present objections to the settlement. For these reasons, the court finds that the proposed class notice complies with due process. (See *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 694-695.) The cost of the notice and administration appears reasonable under the circumstances. The proposed notice appears to meet the statutory requirements. (See Cal. Rules of Court, rule 3.766, subds. (d)-(f).)

For all the foregoing reasons, the court will grant Plaintiffs' motion for preliminary approval.

Judges

Judge Donna D. Geck

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